MASTER SERVICES AGREEMENT (synthetic demo document)

This Master Services Agreement is entered into as of October 1, 2024 by and between FreshCo Software, Inc. ("Vendor") and Northwind Logistics LLC ("Customer").

1. TERM. The initial term is thirty-six (36) months. This Agreement renews automatically for successive twelve (12) month terms unless either party gives ninety (90) days' written notice of non-renewal.

2. FEES. Customer pays the subscription fees in each Order Form monthly in advance.

3. LIMITATION OF LIABILITY. Each party’s aggregate liability shall not exceed the fees paid by Customer in the twelve (12) months preceding the claim.

4. CHANGE OF CONTROL. If Vendor undergoes a Change of Control, Customer may terminate this Agreement upon sixty (60) days’ written notice without penalty.

5. ASSIGNMENT. Neither party may assign this Agreement without the other party’s prior written consent, except to a successor in a merger in which the assigning party is the surviving entity.